

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☐ Yes ☒ No

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at [AFFARS 5302.101](#)? ☐ Yes ☒ No

Dollar Value of this Acquisition: [REDACTED]

Contracting Activity: AFLCMC/WIUKA

Purchase Request (if available) / Local ID Number: FD2060-24-30026

Program / Project (and PE, if applicable): Special Operations Forces (SOF) Aircraft (C-130J) Logistics Sustainment Support (SALSS)

Program Type (PEO, Enterprise, of Operational): PEO

Authority:

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): [REDACTED]

J&A Type: ☒ Class ☐ Individual

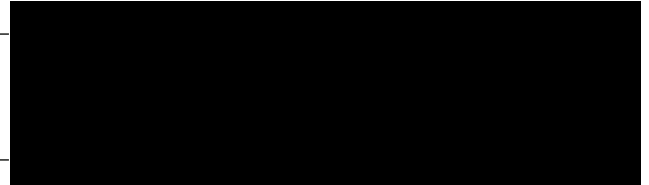
COORDINATION ([AFFARS 5306.304\(a\)](#))

Date 13 Jun 2023	Project Lead / Program Mgr Michelle R. Thompson AFLCMC/WIUKA, [REDACTED]
Date 23 Jun 2023	Contracting Officer Donna H. Casey AFLCMC/WIUKA, [REDACTED]
Date 27 Jun 2023	Local Legal Reviewer Charles R. Epperson 78 ABW/JAQ, [REDACTED]
Date 15 Sep 2023	Competition Advocate Nicole R. Furlough AFSC/PKC / [REDACTED]
Date	Program Executive Officer for Fixed Wing T. Justin Bronder Col, USAF SOFATL/FW/ [REDACTED]

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APPROVAL ([AFFARS 5306.304\(a\)](#))

Date	Director of Contracting Charles A. Braswell (SES) AFLCMC/PK
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I. Agency and Contracting Activity.

This Class Justification and Approval is to request authority for Other Than Full and Open Competition supporting requirements generated for the Air Force Life Cycle Management Center, (AFLCMC/WIUAA), Robins Air Force Base, GA. The contracting activity for this requirement is AFLCMC/WIUKA. The purchase request number supporting this contracting action is FD2060-24-30026.

II. Nature and/or description of the action being approved.

Due to the circumstances described herein, the activity requests authority to acquire services listed in this document using Other Than Full and Open Competition by FAR 6.302-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. This Class Justification and Approval will result in the award of an Indefinite Delivery Indefinite Quantity (IDIQ) contract with a five-year ordering period. Pricing arrangements will be a combination of Firm Fixed Price (FFP), Cost Plus Fixed Fee (CPFF), and Cost Reimbursement No Fee (CRNF). Based on the projected contract award date, orders can be issued from 18 Aug 2024 through 17 Aug 2029.

This sole source requirement will be satisfied by the following company:

Lockheed Martin Aeronautics Company (LMAC)
 86 S Cobb Dr, SE
 Marietta, GA 30063
 CAGE Code: 98897
 Large Business

This IDIQ contract will be awarded as a Single Award Task Order/Delivery Order Contract based on FAR 16.504(c)(1)(ii)(B)(1) in which this J&A provides supporting rationale.

III. Description of supplies/services required to meet agency needs.

This requirement is for sustainment and logistical support for the Special Operation Forces (SOF) C-130J fleet to provide both strategic and tactical airlift capability to the United States Air Force. SOF Aircraft (C-130J) Logistics Sustainment Support (SALSS) includes supplies/ services to support the SOF AC/HC/ MC-130J fleet. The SALSS contract will acquire sustainment and logistical support for program management, technical planning, technical documentation, systems integration support, architecture evaluation and recommendations, systems integration laboratory support, system safety support, airworthiness support, capabilities evaluations, free space evaluation, configuration management, design updates, cyber support, parts and spares, sustainment and logistics services, field teams and installation services, and engineering analyses.

Overall Funding Profile:

<u>PERIOD</u>	<u>FISCAL YEAR</u>	<u>ESTIMATED TOTAL</u>
Basic Year	FY24	
Out-Year 1	FY25	
Out-Year 2	FY26	
Out-Year 3	FY27	
Out-Year 4	FY28	

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Total

The notional Contract Line Item Numbers (CLINs) and anticipated funding for each period is as follows:

BASIC

CLIN	DESCRIPTION	COST TYPE	U/I	QTY	TOTAL EST. COST
0001	Program Management Support	FFP	1	LO	\$
0002	Engineering Support	FFP	1	LO	\$
0003	Tech Data Support	FFP	1	LO	\$
0004	Rapid Response Support	CPFF	1	EA	\$
0005	Repairs	CPFF	1	EA	\$
0006	Spares/Material	CPFF	1	EA	\$
0007	Modifications	CPFF	1	EA	\$
0008	Provisioning	FFP	1	LO	\$
0009	Diminishing Manufacturing Sources and Material Shortages Management	CPFF	1	LO	\$
0010	Contractor Travel	CRNF	1	LO	\$
0011	*GFE Management	FFP	1	LO	\$
0012	Engineering Change Proposals	FFP	1	LO	\$
0013	Software Integration	FFP	1	LO	\$
0014	Packaging/Shipping/Trans.	FFP	1	LO	\$
0015	Deficiency Reports	CPFF	1	LO	\$
0016	Over & Above	FFP	1	LO	\$
0017	Data CDRLS	**NSP	1	LO	\$
BASIC TOTAL					\$

OUT-YEAR 1

CLIN	DESCRIPTION	COST TYPE	U/I	QTY	TOTAL EST. COST
1001	Program Management Support	FFP	1	LO	\$
1002	Engineering Support	FFP	1	LO	\$
1003	Tech Data Support	FFP	1	LO	\$
1004	Rapid Response Support	CPFF	1	EA	\$
1005	Repairs	CPFF	1	EA	\$
1006	Spares/Material	CPFF	1	EA	\$
1007	Modifications	CPFF	1	EA	\$
1008	Provisioning	FFP	1	LO	\$
1009	Diminishing Manufacturing Sources and Material Shortages Management	CPFF	1	LO	\$
1010	Contractor Travel	CRNF	1	LO	\$
1011	GFE Management	FFP	1	LO	\$
1012	Engineering Change Proposals	FFP	1	LO	\$
1013	Software Integration	FFP	1	LO	\$
1014	Packaging/Shipping/Trans.	FFP	1	LO	\$
1015	Deficiency Reports	CPFF	1	LO	\$
1016	Over & Above	FFP	1	LO	\$
1017	Data CDRLS	NSP	1	LO	\$
OUT-YEAR 1 TOTAL					\$

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OUT-YEAR 2

CLIN	DESCRIPTION	COST TYPE	U/I	QTY	TOTAL EST. COST
2001	Program Management Support	FFP	1	LO	\$ [REDACTED]
2002	Engineering Support	FFP	1	LO	\$ [REDACTED]
2003	Tech Data Support	FFP	1	LO	\$ [REDACTED]
2004	Rapid Response Support	CPFF	1	EA	\$ [REDACTED]
2005	Repairs	CPFF	1	EA	\$ [REDACTED]
2006	Spares/Material	CPFF	1	EA	\$ [REDACTED]
2007	Modifications	CPFF	1	EA	\$ [REDACTED]
2008	Provisioning	FFP	1	LO	\$ [REDACTED]
2009	Diminishing Manufacturing Sources and Material Shortages Management	CPFF	1	LO	\$ [REDACTED]
2010	Contractor Travel	CRNF	1	LO	\$ [REDACTED]
2011	GFE Management	FFP	1	LO	\$ [REDACTED]
2012	Engineering Change Proposals	FFP	1	LO	\$ [REDACTED]
2013	Software Integration	FFP	1	LO	\$ [REDACTED]
2014	Packaging/Shipping/Trans.	FFP	1	LO	\$ [REDACTED]
2015	Deficiency Reports	CPFF	1	LO	\$ [REDACTED]
2016	Over & Above	FFP	1	LO	\$ [REDACTED]
2017	Data CDRLS	NSP	1	LO	\$ [REDACTED]
OUT-YEAR 2 TOTAL					\$ [REDACTED]

OUT-YEAR 3

CLIN	DESCRIPTION	COST TYPE	U/I	QTY	TOTAL EST. COST
3001	Program Management Support	FFP	1	LO	\$ [REDACTED]
3002	Engineering Support	FFP	1	LO	\$ [REDACTED]
3003	Tech Data Support	FFP	1	LO	\$ [REDACTED]
3004	Rapid Response Support	CPFF	1	EA	\$ [REDACTED]
3005	Repairs	CPFF	1	EA	\$ [REDACTED]
3006	Spares/Material	CPFF	1	EA	\$ [REDACTED]
3007	Modifications	CPFF	1	EA	\$ [REDACTED]
3008	Provisioning	FFP	1	LO	\$ [REDACTED]
3009	Diminishing Manufacturing Sources and Material Shortages Management	CPFF	1	LO	\$ [REDACTED]
3010	Contractor Travel	CRNF	1	LO	\$ [REDACTED]
3011	GFE Management	FFP	1	LO	\$ [REDACTED]
3012	Engineering Change Proposals	FFP	1	LO	\$ [REDACTED]
3013	Software Integration	FFP	1	LO	\$ [REDACTED]
3014	Packaging/Shipping/Trans.	FFP	1	LO	\$ [REDACTED]
3015	Deficiency Reports	CPFF	1	LO	\$ [REDACTED]
3016	Over & Above	FFP	1	LO	\$ [REDACTED]
3017	Data CDRLS	NSP	1	LO	\$ [REDACTED]
OUT-YEAR 3 TOTAL					\$ [REDACTED]

OUT-YEAR 4

CLIN	DESCRIPTION	COST TYPE	U/I	QTY	TOTAL EST. COST
4001	Program Management Support	FFP	1	LO	\$ [REDACTED]
4002	Engineering Support	FFP	1	LO	\$ [REDACTED]

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4003	Tech Data Support	FFP	1	LO	\$	
4004	Rapid Response Support	CPFF	1	EA	\$	
4005	Repairs	CPFF	1	EA	\$	
4006	Spares/Material	CPFF	1	EA	\$	
4007	Modifications	CPFF	1	EA	\$	
4008	Provisioning	FFP	1	LO	\$	
4009	Diminishing Manufacturing Sources and Material Shortages Management	CPFF	1	LO	\$	
4010	Contractor Travel	CRNF	1	LO	\$	
4011	GFE Management	FFP	1	LO	\$	
4012	Engineering Change Proposals	FFP	1	LO	\$	
4013	Software Integration	FFP	1	LO	\$	
4014	Packaging/Shipping/Trans.	FFP	1	LO	\$	
4015	Deficiency Reports	CPFF	1	LO	\$	
4016	Over & Above	FFP	1	LO	\$	
4017	Data CDRLS	NSP	1	LO	\$	
OUT-YEAR 4 TOTAL					\$	

* Government Furnished Property

**Not Separately Priced

CLIN X017 Contract Data Requirement List (CDRL) is for program management report, engineering studies, updated drawings and technical order/manuals. Under this IDIQ any future sustainment activities or logistical support producing Intellectual Property (IP) will result in the Government requesting Unlimited Rights. The following clauses will be incorporated into the contract regarding data rights:

252.227-7013 Rights in Technical Data - Non Commercial Items (Per 227.7103-6(a))

252.227-7014 Rights in Noncommercial Computer Software and Noncommercial Computer Software Documentation (Per 227.7203-6(a)(1))

252.227-7015 Technical Data - Commercial Items

252.227-7016 Rights in Bid or Proposal Information

252.227-7017 Identification and Assertion of Use, Release, or Disclosure Restrictions

252.227-7019 Validation of Asserted Restrictions - Computer Software

252.227-7027 Deferred Ordering of Technical Data or Computer Software

252.227-7028 Technical Data or Computer Software Previously Delivered to the Government

252.227-7030 Technical Data - Withholding of Payment

252.227-7037 Validation of Restrictive Markings on Technical Data

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252.246.7001 Warranty of Data

52.227-21 (a and b) FAR Clause - Technical Data, Declaration, Revision, and Withholding of Payment-Major Systems

The total estimated contract value is [REDACTED]. The basis for the estimated cost was derived from an Independent Government Estimate completed 06 June 2023. A [REDACTED] escalation factor was applied for each out-year. Orders will be funded through AC/HC/MC-130J platform using Procurement and Operations & Maintenance.

The overall SOF C-130J program acquisition strategy is supported by the conclusion of this J&A to support future sustainment by establishing Open Architecture configuration(s) so there are opportunities to support competitive acquisition.

In accordance with FAR 16.504(c)(1)(ii)(B)(1), only one contractor is capable of providing performance at the level of quality required because the supplies or services are unique or highly specialized, and therefore a sole source IDIQ contract was determined to be the most effective and efficient vehicle with which to procure the supplies and services necessary, given the Government cannot predetermine the precise quantities of supplies and services within a definite period.

This Class J&A covers the award of the basic IDIQ contract and all delivery/task orders issued against it.

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

The agency's minimum needs can only be satisfied by the unique supplies or services available from LMAC. They are the only company with the technical expertise, data/drawings, equipment, software, and other utility programs needed to diagnose failures and sustain these SOF variants (AC/HC/MC-130Js). Access to the proprietary information encompassing design and source data, testing history, evaluation tools and models for the C-130J aircraft is required. It is essential that all sustained aircraft meet the specifications to ensure aircraft availability across the various SOF fleets.

As the Original Equipment Manufacturer (OEM) and sole C-130J design authority, LMAC exclusively maintains the entirety of C-130J design and IP along with all testing and evaluation tools and models. This data combined with the expertise of 600+ engineers with 20 plus years of combined expertise on the C-130J makes them uniquely qualified for providing the highly specialized services for this contract's requirements.

Therefore, this acquisition will be for the continued provision of highly specialized services.

LMAC modified the C-130 to create and sell a commercial variant. As a result, the Federal Aviation Administration certified the C-130 as a commercial aircraft. Since the FAA certification, FAR Part 12, "Acquisition of Commercial Products and Commercial Services" has applied. As such, FAR 12.211, Technical Data, unless expressed otherwise, the Government is limited when acquiring the technical data and the rights in that data customarily provided to the public with a commercial item or process. The Government's non-commercial variants are based on the LMAC commercial variant. In October 2006, the Government transitioned the C-130J program with LMAC into a FAR 15 negotiated non-commercial

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contract to facilitate collection of data on costs and pricing on the remaining aircraft procured. The military SOF C-130J variant aircraft are non-commercial; however, IP continues to be problematic. Market research in Section VII supports the reliance on LMAC for the commercial proprietary data.

The Air Force (AF) has repeatedly asked LMAC to sell IP for the purpose of promoting open competition, where possible, growing the industrial supply base, and innovation. The last attempt was in December 2020; however, LMAC denied the AF's IP request.

Although the Government is competing common products used on other platforms, items, parts, and components to the maximum extent practicable, the lack of C-130J technical data and source codes prevents the ability to stand-up organic capability and compete sustainment requirements where technical data is specifically owned by LMAC. In order to estimate the cost of organic capability or competing sustainment activities, in November of 2020, the Government requested LMAC provide a Rough Order of Magnitude for the estimated cost of procuring the full technical data package and unlimited data rights for the entire C-130J aircraft system, source code, configurations, and support equipment. LMAC declined to provide any assistance.

While LMAC asserts to own all C-130 and variant technical packages, the Government continues to assess and evaluate projects to determine whether circumstances exist where the Government may have provided partial funding and therefore, may have Government purpose right. As new requirements are defined for SOF modifications on SOF C-130Js, the Government will continue to request technical data rights.

The SOF Fixed Wing Program Office has determined that award to any other source would result in substantial duplication of cost to the Government that is not expected to be recovered through competition and unacceptable delays in fulfilling the Government's requirements.

Reverse engineering the C-130J system and subsystems is not a technically or financially feasible proposition. The initial development of the C-130J weapon system and subsystems was accomplished by LMAC private investment. LMAC amortized approximately [REDACTED] in development cost over the first 180 C-130Js sold to its various customers to include Government, Foreign Military Sales, and commercial buyers. The 180th aircraft milestone was reached in early 2005. After completing a cost savings and benefit analysis, the Government estimates it would cost approximately [REDACTED] to reverse engineer the C-130J for competitive procurement and sustainment purposes and it would take approximately 104 years to recoup those costs. That number of years far exceeds the remaining 25 life cycle years of the C-130J and would cause vulnerabilities, delayed modifications, and grounding of aircraft awaiting the completion of reverse engineering efforts. All of this negates the Government's ability to keep up with adversaries.

Accordingly, LMAC, is the only firm capable of providing the supplies and services described in Section III above without the Government experiencing substantial duplication of cost that could not be expected to be recovered through competition and unacceptable delays in fulfilling its requirements.

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

A Sources Sought (SS) / Request for Information (RFI) synopsis was posted to SAM.gov on 19 August 2022 with a response date of 19 September 2022, under Notice ID FA8509-22-R-0001. The SS/RFI requested responses from interested vendors who possess the capability to provide the sustainment

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supplies/services required for sustainment of Special Operations Forces / Personnel Recovery (SOF/PR) and derivative aircraft, to include mission specific variant aircraft: AC, HC, and MC. Three responses were received to the SS/RFI. Responses were received from [REDACTED] and LMAC. [REDACTED] do not possess the appropriate data rights or intellectual rights required to provide supplies/services to support this effort, therefore were determined not capable. LMAC was determined to be the only respondent with capability to support this requirement.

The requirement will be synopsized in Sam.gov in accordance with FAR 5.201. It is anticipated that sources having an interest in subcontracting may be identified through synopsis. Any source who responds to the Government as a result of this synopsis will be identified to the prime contractor as a potential subcontracting possibility.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Based upon (1) certified cost or pricing data provided in the offeror's proposal, (2) the program office's technical analysis of the offeror's Basis of Estimates, and (3) inputs from the Defense Contract Management Agency, including from the Administrative Contracting Officer. The contracting officer expects to determine the anticipated cost to the Government will be fair and reasonable.

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

Market research was conducted from 01 June 2022 through 04 January 2023 in accordance with FAR 10.001 and 10.002. The Market Research Report was completed on 04 January 2023. The market research techniques used were as follows:

A SS/RFI was posted to SAM.gov on 19 August 2022 with a response date of 19 September 2022, under Notice ID FA8509-22-R-0001. Responses were received from [REDACTED] and LMAC. Of the three vendors, LMAC was determined to be the only respondent with capability to support this requirement.

Internet searches were conducted using Government databases but no potential capable vendors were identified.

There are no commercial opportunities under this effort. The SOF platform of the C-130J is not a commercial aircraft.

The market research concluded LMAC is the only vendor capable of fulfilling the Government's requirement.

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

None.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

See Section V above.

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X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

The plan to remove or overcome barriers to competition is to inquiry with LMAC their interest in selling the technical data package to the Government. LMAC will be contacted prior to the end of the contract.

There was no prior J&A.

XI. Certification by the Contracting Officer.

As evidenced by my signature, I certify that this justification is accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.